Montgomery County District Court

Cause No. 2025-CV-0004

Diana Davis, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Oral Deposition of Diana Davis

Date:	September 6, 2025
Location:	Offices of Bauer & Bryant Law Group
Examining attorney:	Stephanie Williams, Ashford & Lyle LLP
Defending attorney:	Michael Duncan, Bauer & Bryant Law Group

Q: Please state your full name for the record.

A: I'd rather just say I'm the plaintiff in this case. You already have my name on the complaint.

Q: For the record, I need your name, Counsel. Let's proceed. Where were you on the day of the collision?

A: I was driving home from the grocery store. I had just turned onto the access road heading toward my neighborhood in Sugar Land, Texas.

Q: Describe what happened.

A: I was in the left lane, moving slowly because traffic was backed up. The other car came across the center line. I saw headlights coming at me and I braked and turned the wheel, but there wasn't time to avoid it. We hit nearly head-on, though the angle was a little off.

Q: How fast do you believe you were traveling?

A: Maybe fifteen or twenty miles an hour. It was not a high-speed crash. Honestly, I was surprised the airbags didn't deploy.

Q: Did you feel any pain immediately after the collision?

A: Not right away. I was shaken up and my neck felt stiff. By that evening, my lower back was aching and my neck was sore when I turned my head.

Q: Did you seek medical care?

A: Yes. My husband drove me to urgent care the next morning. They checked my neck and back and told me I had strains. They gave me a muscle relaxer and told me to rest and use ice.

Q: Have you received any further treatment since then?

A: I went to physical therapy about twice a week for several weeks. The therapist worked on my neck and lower back. It helped some, but I still have stiffness, especially after sitting for a long time.

Q: How has the injury affected your daily activities?

A: I used to garden on weekends and I haven't been able to do that the way I did. Lifting my grandchildren is harder, and I've had to ask my daughter to help with groceries. I also don't sleep as well because I can't find a comfortable position.

Q: Have you missed any work?

A: I work part-time at a bookstore. I missed a few shifts while I was in the worst of it, and I had to switch some of my hours so I could get to therapy.

Q: Before this collision, had you ever injured your neck or back?

A: No, not that I can recall. I'd had normal aches now and then, but nothing that required a doctor.

Q: Is there anything else about your condition you want to tell us?

A: Only that I'm still not back to where I was. Some days are better than others, and I'm hoping the doctors can tell me what to expect going forward.